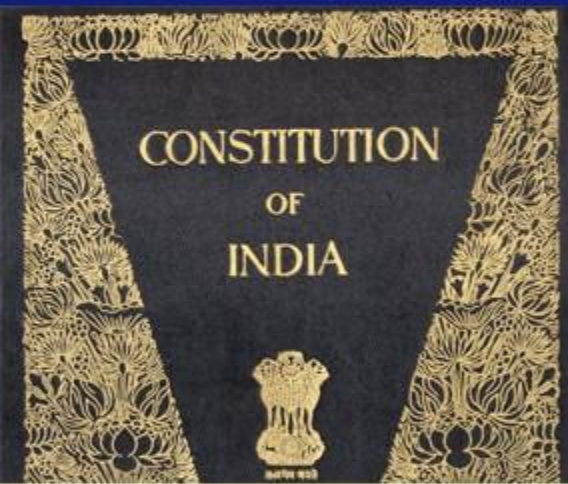
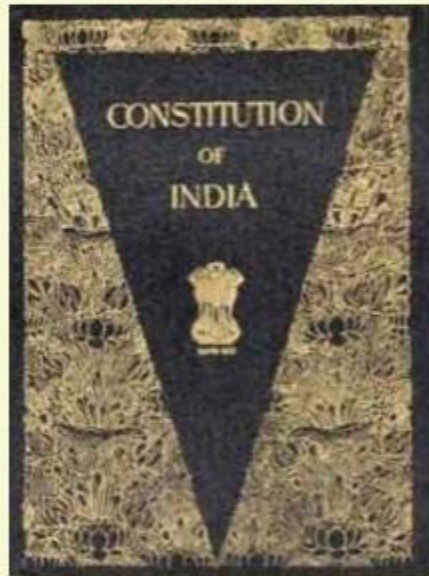


INDIAN POLITY



MODULE - 10

**MAKING OF THE
CONSTITUTION**



**MAKING OF THE
CONSTITUTION**

COMPOSITION OF THE CONSTITUENT ASSEMBLY



Jinnah(2nd from Left) with the members of the Cabinet Mission- Alexander (left), Lord Pethick Lawrence & Sir Stafford Cripps.

- 1 The Constituent Assembly was constituted in November 1946, under the scheme formulated by the Cabinet mission plan.
- 2 This Assembly held its first meeting on 9th December 1946 and it reassembled on 14th August, 1947 as the Sovereign Constituent Assembly for the Dominion of India.

MEMBERS OF CABINET MISSION PLAN



STAFFORD CRIPPS



PETHICK LAWRENCE



A.V. ALEXANDER

THE FEATURES OF THE CONSTITUENT ASSEMBLY



1 Each province and each Indian State or group of states were **allocated the total number of seats proportional to the respective population** roughly in the ratio of 1 to a million. As a result **the provinces were to elect 292 members** while the Indian States were allotted a minimum of 93 seats.

2 The seats in each provinces were distributed among the **three main communities- Muslim, Sikhs, and General** in **proportional to their respective populations**.

THE FEATURES OF THE CONSTITUENT ASSEMBLY



- 3** Members of each community in **provincial legislative assembly elected** their own representatives by the method of proportional representation with single transferrable vote.
- 4** The method of selection in the case of representatives of Indian states was through **nomination by the heads of Princely States**.
- 5** It is thus clear that the Constituent Assembly is **partly elected and partly nominated body**. Moreover the members were to be indirectly elected by the members of provincial assemblies, who themselves elected on limited franchise.

POINTS TO BE NOTED FOR MCQs



STAFFORD CRIPPS



PETHICK LAWRENCE



A.V. ALEXANDER

- The limited franchise was granted by the Government of India Act of 1935 on the **basis of property, education and tax.**
- The Cabinet Mission consisted of three members- Lord Pethick Lawrence, Sir Stafford Crips and A.V. Alexander.
- This Constituent Assembly included all important personalities of India at that time with the **exception of Mahatma Gandhi and Mohammad Ali Jinnah.**

WORKING OF THE CONSTITUENT ASSEMBLY



**SACHCHIDANAND
SINHA**

- 1** The Constituent Assembly held its first meeting on December 9th, 1946. The Muslim league boycotted the meeting and insisted on separate State of Pakistan.
- 2** Dr. Sachchidanand Sinha, the oldest member, was elected as the temporary president of the Assembly.
- 3** Later on December 11th 1946, Dr. Rajendra Prasad and H.C. Mukherjee were elected as the President and Vice-President of the Assembly respectively.
- 4** Sir B.N. Rao was appointed as the Constitutional Adviser to the Assembly.

OBJECTIVES RESOLUTION

- 1 On December 13, 1946, Jawaharlal Nehru moved the historic “Objective Resolution” in the Assembly. It laid down the fundamentals and philosophy of the Constitutional structure.
- 2 The crux of the objective resolution is
 1. It declare India as an Independent, Sovereign and Republic.
 2. The territories that now comprises of the Indian nation shall constitutes the States of British India and the Indian States and India shall be the Union of them all.
 3. The above said territories shall retain the status of autonomous units and exercise all functions and powers of the Government and administration except such powers and functions which are inherently employed on the Union.
 4. All the power and the authority of the Sovereign,Independent India and its organs of the Government are derived from the people.

OBJECTIVES RESOLUTION



- 2
5. It shall be guaranteed to all the people of the India- justice, equality of status, equality before law, freedom of thought and expression etc subject to law and public morality.
 6. Adequate safeguards for minorities, backward and tribal areas and depressed classes.
 7. Integrity of the Indian Republic shall be maintained and the sovereign rights on land, sea and air to be given.
 8. Contribution to the promotion of world peace and the welfare of the mankind to be provided.

This resolution was unanimously adopted by the Assembly on January 22, 1947. Its modified version forms the Preamble of the Present Constitution.

FUNCTIONS PERFORMED BY THE CONSTITUENT ASSEMBLY



1

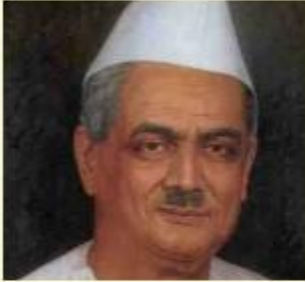
In all, the Constituent assembly had over 11 sessions over 2 years, 11 months and 18 days the constitution makers had gone through the Constitution of about 60 countries and the draft constitution was considered for 114 days.

2

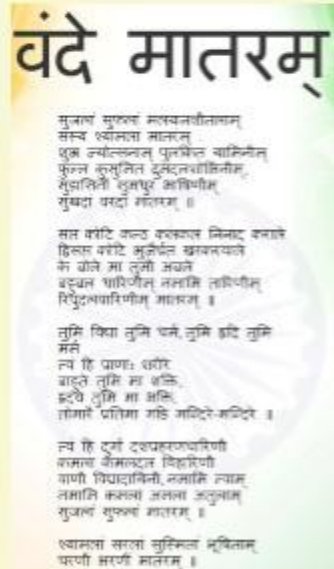
On January 24, 1950 the constituent Assembly held its final session. It however did not end and continued as Provincial Parliament of India from January 26th 1950 till the formation of new Parliament after the first General elections in 1951-52.



POINTS TO BE NOTED FOR MCQs

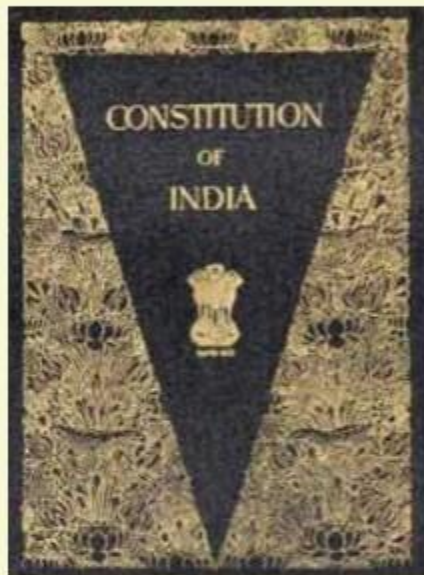


G.V. MAVALANKAR



- The Assembly acted as **both Constituent Assembly as well as Legislative body**. Whenever the assembly met as the Constituent body it was chaired by **Dr. Rajendra Prasad** and when it met as a legislative body it was chaired by **G.V.Mavalankar**.
- The Constitution Assembly ratified India's membership of the Commonwealth in May, 1949.
- It also adopted the National Flag, National Anthem, National Song of India.
 1. National Flag – July 22 1947.
 2. National anthem January 24, 1950.
 3. National Song – January 24, 1950.
 4. It elected Dr. Rajendra Prasad as the First President of India on January 24 1950.
- **Prem Behari Narain Raizada** was the calligrapher of the Indian Constitution.

ENACTMENT OF THE CONSTITUTION



DR. B.R AMBEDKAR

1 The motion on Draft Constitution was declared as passed, on **November 26, 1949** and received the signatures of the President and the members.

2 This is also the date mentioned in the Preamble as the date on which the people of India and the Constituent Assembly adopted, enacted and gave to themselves this Constitution.

3 The Constitution as adopted on November 26, 1949 contained **a Preamble, 395 Articles and 8 Schedules**. The Preamble was enacted after the entire Constitution was enacted.

4 Dr. B.R Ambedkar, the then Law Minister, piloted the Draft Constitution in the Assembly. He is recognized as the “Father of the Constitution of India” (also known as “**Modern Manu**”).

ENFORCEMENT OF THE CONSTITUTION



FIRST REPUBLIC DAY

- 1 Some provisions of the Constitution pertaining to Citizenship, elections, provincial parliament, temporary and transitional provisions, and short title came into **force on November 26, 1949** itself.
- 2 The remaining provisions, which forms the major part, came into force on **January 26th 1950**.
- 3 This day referred to in the constitution as the **date of its commencement and celebrated as the Republic day**.

ENFORCEMENT OF THE CONSTITUTION



LAHORE SESSION 1929

THE LAHORE CONGRESS SESSION OF THE INDIAN NATIONAL CONGRESS WAS HELD IN 1929 UNDER THE PRESIDENCY OF JAWAHARLAL NEHRU.

4

- January 26 was specifically chosen as the date of the commencement of the Constitution because of its historical importance.
- It was on this day in 1930 that Poorna Swaraj was celebrated, following the resolution of the Lahore Session (December, 1929) of the INC.

5

With the Commencement of the Constitution, the Indian Independence Act of 1947 and the Government of India Act of 1935 were repealed.



CRITICISM OF THE CONSTITUENT ASSEMBLY

1 NOT A REPRESENTATIVE BODY

The Constituent Assembly is not a representative body as its members **were not directly elected by the people of India** on the basis of Universal Adult Franchise.

2 NOT A SOVEREIGN BODY

It is not a sovereign body as it was created by the **proposals of the British Government**.

3 TIME CONSUMING

The Constituent Assembly took unduly long time to make the Constitution. The framers of the American Constitution took only 4 months to complete their work.

4 DOMINATED BY CONGRESS

Granville Austin, a British Constitutional expert remarked the Constituent Assembly of India was **“one party body in an essentially one party country. The Assembly was the Congress and the Congress was India”**.



CRITICISM OF THE CONSTITUENT ASSEMBLY



5 LAWYER POLITICIAN DOMINATION

The critics pointed out that this constituent assembly was dominated by lawyers and politicians and the other sections of the society were not sufficiently represented. This, to them, is the **main reason for the bulkiness and complicated language of Constitution.**

6 DOMINATED BY HINDUS

According some critics the Constituent Assembly was a Hindu dominated body.

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